OPEN LETTER · EYE ON SHOALHAVEN COUNCIL

Errors in five business papers for the 24 November Shoalhaven Council meeting

Sent 14 November 2026 · To Shoalhaven City Council · Response requested by 20 November 2026

To: Mr Andrew Constance, Chief Executive Officer, Shoalhaven City Council; the Mayor and all Councillors

From: Stephen Prothero, Eye on Shoalhaven Council

Date: 16 November 2026

STATUS OF THIS LETTER

This is a public open letter to the Chief Executive Officer. It is published by Eye on Shoalhaven Council as a matter of public interest journalism.

It is not a complaint. It is not a complaint under Council's Complaint Handling Policy, and it is not to be registered, assessed or managed as one.
It is not a Code of Conduct complaint. It does not allege a breach of the Code of Conduct by any person, and it is not to be referred to the Complaints Coordinator, a conduct reviewer or the Office of Local Government.
It is not an access application. It is not an application under the Government Information (Public Access) Act 2009 (NSW), formal or informal, and no statutory time limit is started by it.
It is not a request for service. It does not ask Council to take action, to make a decision, or to review a decision.
It is a set of questions put to a public official in the same way a journalist puts questions to the head of an organisation. The Chief Executive may answer all, some or none of the questions, and may do so in whatever form and at whatever time he chooses. Some questions can be answered in a line and others may need work. If the Chief Executive intends to comment on any question, a short reply to this email saying so is all that is needed.

Part 4 is addressed to Councillors as elected members, in their own right. It invites them to consider a course of action. It is not addressed to the Chief Executive or to Council as an organisation.

Replies will be published in full. If no reply is received, that will be recorded as it stands.

Mr Constance, Mayor and Councillors,

The Chief Executive's obligations on advice to Council

Before the examples, the legal position. Section 335 of the Local Government Act 1993 sets out the functions of a general manager. I have read it in the copy of the Act held in this masthead's legislation library, current as at 14 October 2026. Four of them bear directly on the business paper:

- Section 335(a): "to conduct the day-to-day management of the council in accordance with the strategic plans, programs, strategies and policies of the council". How the organisation prepares and clears a business paper is day-to-day management. It is yours to run.
- Section 335(c) and (d): "to advise the mayor and the governing body on the development and implementation of the strategic plans, programs, strategies and policies of the council", and on "the appropriate form of community consultation" on them and "other matters related to the council".
- Section 335(f): "to ensure that the mayor and other councillors are given timely information and advice and the administrative and professional support necessary to effectively discharge their functions".
- Section 335(i): the power "to direct" staff. The standard of work that reaches Councillors is something the Chief Executive can direct.

Councillors have their own duty on the other side of that advice. Section 232(1)(b) makes it part of a councillor's role "to make considered and well informed decisions as a member of the governing body".

They can only meet that duty if the advice in front of them is sound. Section 8A(2)(e) adds that council decision-making "should be transparent and decision-makers are to be accountable for decisions and omissions".

Section 352(1) protects the independence of staff advice, and Councillors may not direct its content, which is why this letter asks about the process that produces papers and not about what any paper should conclude.

I am not a lawyer, and this is not legal advice. I make no finding that any obligation has been breached.

My point is narrower.

Section 335(f) puts the responsibility for what reaches Councillors on the Chief Executive, and the papers described below are the test of it.

I have read the business paper for Tuesday's Ordinary Meeting.

Several papers contain errors that anyone reading them closely would see.
One argues against its own recommendation.
Others rely on documents the reader is not given.
Councillors are asked to decide on these papers on Tuesday night.

This letter sets out what I found, asks what checking exists, and asks Councillors to consider a motion on the standard of papers. I criticise the papers and the process that cleared them, not any individual officer.

1. What the papers contain

CL26.305, Rescind Policy: Film and Photography Production in Public Reserves and Public Places. The recommendation list begins at number 2. There is no recommendation 1, and nothing in the report says what it was. The "Proposed approach" section says that by rescinding POL22/36 Council "would operate within the guidelines set by POL22/36 the NSW Local Government Filming Protocol". As written, that names the policy being rescinded as the rulebook Council will operate under. Recommendation 5 says Council will "propose draft annual fees and charges". The "Proposed approach" section says Council will "adopt" them. The report says the Protocol's fee structure is "greatly reduced" from current charges and that income will fall if permit numbers hold. It gives last year's income ($3,700) and does not say what the new fee schedule would produce. No external or community consultation was done.

CL26.307, Relinquish Appointment as Crown Land Manager, Greenwell Point Fisherman's Wharf. The Background says that once Council's appointment is relinquished "it is expected that the wharf will be managed by Transport for NSW". The Risk Implications section says management would transfer "to Crown Lands or another appointed Crown Land Manager". Council is asking the Minister for consent on a premise its own paper does not state consistently. The two licensees pay "an annual licence fee of $5,989.00 inclusive of GST respectively". That wording does not tell the reader whether the revenue is $5,989 or $11,978. Short-term tenancies are said to run for up to twelve months from 1 July 2026, and the paper does not say what happens to the licensees if consent arrives sooner or later than that.

CL26.306, Waminda South Coast Aboriginal Corporation: request for vehicle parking. The report says the Private Use of Public Parking Spaces policy (POL22/110) allows "no more than two spaces" and describes the request for 20 as "a departure from Council's existing policy framework". It says exclusive use "would not be enforceable by Council". It says approving the request "may create a precedent", and that the Lawrence Avenue car park "is in high demand". It identifies Stewart Place, 80 metres from the premises, as a possible option. It then recommends a five-year licence for 20 spaces at $17,000 a year, about $850 a space. It says an independent valuation supports the fee. The valuation is not attached. No community consultation was done. Nothing in the report explains why the analysis it sets out leads to the recommendation it makes.

CL26.315, Public Policies Review: Sustainability and Climate, and Electric Vehicle Charging Stations. The report discloses that the interim target of a 50 per cent reduction in emissions by 2028 is removed. It then says no external or community consultation was

done "as no significant changes have been proposed". Removing the only interim emissions target in the policy is a significant change. The report also carries wording left over from the larger policy-review report it was split from: "The majority of the policies included in this report proposed for reaffirmation have minor changes", when it covers two policies.

CL26.299, Notice of Motion: Local Government Summit Against Antisemitism and For Social Cohesion. The motion approves "Councillors" to attend from 25 to 27 November. It does not say how many or which Councillors. The only cost given is $599 a head plus accommodation if Council's scholarship application is unsuccessful, with no total and no budget source. The summit starts the day after the meeting.

There are other items on the agenda where I think the evidence for the recommendation is thin. I have confined this letter to those where the problem is visible on the face of the paper.

1. Why it matters

A recommendation that contradicts its own analysis, a rescission with a missing recommendation, and a fee decision resting on a document Councillors do not have are not matters of style. A Councillor who votes on these papers is relying on them, and cannot fix an error found in the chamber. Section 335(f) requires "timely information and advice" that lets Councillors discharge their functions, and section 232(1)(b) requires those Councillors to make "well informed" decisions. Both depend on the papers being right before they are published.

1. Questions for the Chief Executive

Question 1. Does Council have a documented clearance process for business papers before they are published in an agenda? If so, will you release it? If not, why not?

Question 2. Who is responsible for the final check of a paper against its own recommendation, its attachments and its drafting before it is published? Is there a checklist, and does it cover whether a recommendation is consistent with the analysis in the report, whether every document the report relies on is attached, whether consultation statements match the size of the change, and whether numbering and drafting are correct?

Question 3. Section 335(f) of the Local Government Act requires the general manager "to ensure" that Councillors are given timely information and advice. How do you assess that the papers described in Part 1 met that requirement? What steps do you take to satisfy yourself that it is being met for every paper?

Question 4. Was that process applied to CL26.305, CL26.306, CL26.307, CL26.315 and CL26.299? If it was, how did the errors described above pass through it?

Question 5. Will corrected versions of CL26.305 and CL26.307 be issued to Councillors and the public before Tuesday's meeting, with the changes identified? Will the valuation cited in CL26.306 be provided to Councillors and published?

Question 6. What will you do to bring the standard of business papers to an acceptable level? Will you set written quality standards for papers, tell Councillors what they are, and report to Council on how often published papers need correction?

Question 7. Will you bring a report on this to the first Ordinary meeting of 2027?

I ask for a response by Friday 20 November 2026, so that Councillors have it before Tuesday's meeting. If any question cannot be answered, please say which and why, so the reason can be reported accurately.

1. **To Councillors**

You are asked to decide on these papers, and you are the people who will carry the consequences of a decision made on a defective one.

I ask you to consider three things.

- **Read CL26.305, 306, 307, 315 and 299 against the examples above before Tuesday. Where a paper does not support its recommendation, consider whether the item should be deferred or amended so that it can be properly considered, rather than carried as it stands.**
- **Ask the Chief Executive in writing, before the meeting, whether corrected papers will be issued.**
- **Consider moving a motion on the quality of business papers, at the earliest opportunity the Code of Meeting Practice allows. I have not checked what notice the Code requires, and Council's governance staff will be able to advise. A possible form of words is:**

That Council:

1. **Notes that errors and inconsistencies have been identified in business papers for the Ordinary Meeting of 24 November 2026, including items CL26.305, CL26.306, CL26.307 and CL26.315, and that section 335(f) of the Local Government Act 1993 requires the general manager to ensure Councillors are given timely information and advice.**

1. **Requests the Chief Executive Officer to report to the first Ordinary meeting of 2027 on the process for reviewing and clearing business papers before publication, including who signs off, what is checked, and how errors found after publication are corrected and notified to Councillors and the public.**

1. **Requests that the report propose written quality standards for business papers, including that recommendations are consistent with the analysis in the report, that every document a report relies on is attached or its absence explained, and that consultation statements are consistent with the nature of the change.**

1. **Requests that corrected versions of papers found to contain errors be issued to Councillors, with changes identified, before the item is determined.**

A motion of this kind does not direct staff to a particular outcome on any item. It asks for a report and a standard. I would be glad to publish any Councillor's reasons for supporting it or not.

I intend to publish this letter and any reply in full at steveprothero.substack.com and in the Eye on Shoalhaven Council group. If no reply is received by 20 November I will report that plainly.

No adverse finding has been made against any councillor, officer or community organisation named in this letter, and none is implied. The statements about the papers are drawn from the agenda for the Ordinary Meeting of 24 November 2026. I will correct any error promptly and with the same prominence.

Yours sincerely,

Stephen Prothero

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